

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUPP050272: XITLALI ESTRELLA BARRAGAN vs AURORA VISTA DEL MAR,
LLC., et al.**

07/14/2026 in Department 43

Motion for Protective Order Pursuant to CCP 2025.420 and for Monetary Sanctions

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motions:

- 1.) Motion for Protective Order re PMK deposition
- 2.) Motion to Compel PMQ Deposition

Tentative Ruling: The court intends to DENY Defendant Aurora Visa Del Mar, LLC's (Aurora) Motion for Protective Order and to GRANT Plaintiff Xitlali Estrella Barragan's Motion to Compel PMQ Deposition. (Note: The Motion for Protective Order references a "Person Most Knowledgeable" (PMK), and the Motion to compel uses "Person Most Qualified" (PMQ). Because the deposition notice uses PMQ, the Court adopts the term PMQ in this ruling but considers the terms to be interchangeable for purposes of the motions.)

Defendant Aurora's PMQ – Amber Nunes – left Defendant's employment before her scheduled PMQ deposition. (Charles 5/29/26 Decl. at ¶11; Bumpus 5/29/26 Decl. at ¶2.) On June 30, 2026, Defendant Aurora's Director of Quality and Risk Management Amanda Corenson declared (6/30/26 at ¶2 and ¶3) that *"there is no one at Vista Del Mar who can speak to the information*

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requested. We hired a new Director of Nursing who started 10 days ago but he is not able to speak to anything about this case, policies in place at the time of the incident, or even Signature health policies or practices... we simply do not have anyone who is qualified at this time."

Defendant Aurora cites no authority that holds that an entity deponent is authorized to decline to offer a PMQ. *Maldonado v. Superior Court* (2002) 94 Cal.App.4th 1390, cited by Aurora, and by *LAOSD Asbestos Cases* (2023) 87 Cal.App.5th 939, 948–949 states the opposite: ‘[i]f the subject matter of the questioning is clearly stated, the burden is on the entity, not the examiner, to produce the right witnesses. And, if the particular officer or employee designated lacks personal knowledge of all the information sought, he or she is supposed to find out from those who do!’ (*Maldonado v. Superior Court* (2002) 94 Cal.App.4th 1390, 1395–1396 quoting Civil Procedure Before Trial (The Rutter Group 2001) ¶ 8:475, p. 8E–18.)

Defendant Aurora is ordered to designate a PMQ and make them available for deposition to take place on or before August 14, 2026. (Code Civ. Proc., §2025.450(a).)

Regarding sanctions, defense counsel opted not to advise Plaintiff regarding the unavailability of PMQ Nunes until the day before the PMQ deposition. The court does not question the veracity of counsel’s statement that she endeavored to find a replacement after she learned of Nunes’ departure. (Charles 5/29/26 Decl. at ¶11). However, Plaintiff’s counsel unavoidably incurred expenses that would not have been incurred (reporter’s cancellation fees (\$1,083.00 (Ex I to Kruid 6/3/26 Decl.)) had counsel timely advised Plaintiff of the unavailability of the PMQ for the May 28, 2026, deposition. Counsel would need deposition preparation time regardless of when the PMQ deposition takes/took place, but the Court will award some time for counsel to refresh the work he did in May. The Court also awards Plaintiff some fees incurred in preparing and appearing at the motion. Total monetary sanctions awarded are \$4,083.00. (Code Civ. Proc. §2025.450(g)(1).) Sanctions are payable by counsel and Defendant to Plaintiff on or before August 14, 2026.

Plaintiff is ordered to serve notice of the Court’s ruling.